

EXHIBIT A

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #

-----X
JOSEFINA RAMIREZ,

Plaintiff designates

KINGS County as the place of trial

Plaintiff,

Basis of venue is plaintiff's place of residence

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ABIOLA
ERRICO, POLICE OFFICER MICHAEL LEUN and
CESAR BERMEJO,

Plaintiff resides at

2066 West 8th Street

Brooklyn, New York 11223

Defendants.

County of Kings

-----X TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PAZER, EPSTEIN & JAFFE, P.C.

Attorneys for Plaintiff
20 Vesey Street, 7th Floor
New York, New York 10007
(212) 227-1212

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER ABIOLA ERRICO
Shield No.: 5701
83rd Precinct
430 Knickerbocker Avenue
Brooklyn, New York 11237

**See attached Rider

Notice: The nature of this action is as follows: personal injury

The relief sought is as follows: monetary damages

UPON YOUR FAILURE TO APPEAR:

Judgment will be taken against you by default for a sum in excess of the jurisdictional limits of all lower Courts, with interest from March 31, 2015 and the costs of this action.

DATED: NEW YORK, NEW YORK
JUNE 1, 2015

POLICE OFFICER MICHAEL LEUN

Shield No.: 2805

83rd Precinct

430 Knickerbocker Avenue

Brooklyn, New York 11237

CESAR BERMEJO

211 Central Avenue

Brooklyn, New York 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEFINA RAMIREZ,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ABIOLA ERRICO, POLICE OFFICER MICHAEL
LEUN and CESAR BERMEJO,

Defendants.
-----X

That Plaintiff complaining of the Defendants by her attorneys PAZER, EPSTEIN
& JAFFE, P.C., upon information and belief allege as follows:

FIRST: That at all times hereinafter mentioned the defendant, THE CITY
OF NEW YORK was and still is a municipal entity organized and/or existing under and by virtue
law statutes and ordinances of this State of New York.

SECOND: That upon information and belief at all times hereinafter mentioned
the defendant THE NEW YORK CITY POLICE DEPARTMENT was and arm of THE CITY
OF NEW YORK operating its Police Department within the County of Kings, City and State of
New York.

THIRD: That upon information and belief at all times hereinafter mentioned
the defendant THE CITY OF NEW YORK, its agents, servants and/or employees operated,
maintained, managed and controlled THE NEW YORK CITY POLICE DEPARTMENT,
including all police officers thereof.

FOURTH: That upon information and belief at all times hereinafter mentioned the defendant THE NEW YORK CITY POLICE DEPARTMENT, was an agency, instrumentality, department of defendant, THE CITY OF NEW YORK, and/or defendant THE CITY OF NEW YORK, derived benefits from the activities of THE NEW YORK CITY POLICE DEPARTMENT.

FIFTH: That upon information and belief at all times hereinafter mentioned the defendant, POLICE OFFICER ABIOLA ERRICO was a member of the New York City Police Department acting in his capacity as police officer in the course of his employment at the time of this event.

SIXTH: Defendant POLICE OFFICER ABIOLA ERRICO, is sued individually and in his official capacity.

SEVENTH: That upon information and belief at all times hereinafter mentioned the defendant, POLICE OFFICER ABIOLA ERRICO was acting under color of law and authority as a police officer with THE NEW YORK CITY POLICE DEPARTMENT.

EIGHTH: That upon information and belief at all times hereinafter mentioned the defendant, POLICE OFFICER MICHAEL LEUN was a member of the New York City Police Department acting in his capacity as police officer in the course of his employment at the time of this event.

NINTH: Defendant POLICE OFFICER MICHAEL LEUN, is sued individually and in his official capacity.

TENTH: That upon information and belief at all times hereinafter mentioned the defendant, POLICE OFFICER MICHAEL LEUN was acting under color of law and authority as a police officer with THE NEW YORK CITY POLICE DEPARTMENT.

ELEVENTH: That at all times hereinafter mentioned the plaintiff JOSEFINA RAMIREZ was a citizen of the City of New York residing in the County of Kings at 2066 West 8th Street, First Floor, Brooklyn, New York 11223.

**AS AND FOR THIS FIRST CAUSE
OF ACTION FOR ASSAULT AND BATTERY**

TWELTH: That on the 31st day of March, 2014, the plaintiff was a lawful tenant at the location of 211 Central Avenue, 1st Floor, Brooklyn, New York 11221.

THIRTEENTH: That on or about the 31st day of March, 2014, the plaintiff was approached by the defendants POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN.

FOURTEENTH: That the defendants POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN at the location of 211 Central Avenue, First Floor, Brooklyn, New York 11221 did repeatedly strike, assault, batter and/or otherwise injure without cause and/or justification the plaintiff JOSEFINA RAMIREZ on or about her person causing personal injury, harm and disability to the plaintiff.

FIFTEENTH: That the aforesaid assault was carried out solely to inflict physical and mental harm upon the plaintiff.

SIXTEENTH: That at all times hereinafter mentioned defendants POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN was acting within the scope of their employment, under color of authority, and in furtherance of his employer's interest.

SEVENTEENTH: That as a result of the aforementioned this plaintiff sustained serious injuries directly resulting from excessive and brutal force practiced upon her by the POLICE OFFICERS named hereinabove.

EIGHTEENTH: That the physical force used by the officers upon the plaintiff was totally unnecessary, without justification and excessive under any standard of proper police conduct. The injuries suffered by the plaintiff are directly caused by the officers use of excessive force and there failure to restrain one another in this regard.

NINETEENTH: By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

**AS AND FOR THIS SECOND CAUSE
OF ACTION FOR WRONGFUL EVICTION**

TWENTIETH: This plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as though more fully set forth herein at length.

TWENTY-FIRST: As and for all the times hereinafter mentioned the defendant, CESAR BERMEJO was the owner of the property known more commonly as 211 Central Avenue, Brooklyn, New York 11221.

TWENTY-SECOND: That on or about March 31, 2014, defendant, CESAR BERMEJO did disseize, eject and/or put plaintiff out of the aforesaid real property in a forcible and/or unlawful manner.

TWENTY-THIRD: That the defendant CESAR BERMEJO had a duty to seek and utilize the proper civil process in the event that he was a property owner who believed the plaintiff did not belong on the subject premises.

TWENTY-FOURTH: Defendant, CESAR BERMEJO had a duty to serve plaintiff with proper petition to have her lawfully evicted from his premises in the event that he believed that plaintiff did not belong there.

TWENTY-FIFTH: Defendant, CESAR BERMEJO had a duty to affect the proper eviction to maintain plaintiff's property and/or to secure plaintiff's personal property in storage for plaintiff to retrieve same, and to refrain from abusing plaintiff and damaging plaintiff's personal property.

TWENTY-SIXTH: Following the aforesaid unlawful actions, the defendant, CESAR BERMEJO did hold and keep plaintiff out of the aforesaid real property by force and/or putting her in fear of personal violence and/or by unlawful means.

TWENTY-SEVENTH: As a consequence to the foregoing defendant, CESAR BERMEJO did unlawfully dispossess, eject and/or put the plaintiff from the aforesaid real property as contemplated in §853 of the Real Property Action and Proceeding Law.

TWENTY-EIGHTH: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty as police officers, to not perform summary evictions of individuals such as plaintiff.

TWENTY-NINTH: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty refrain from engaging in personal civil conflicts between private citizens.

THIRTIETH: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty to maintain partiality and respect the private civil disputes between civilians and refrain from choosing sides to detriment of one private citizen over another.

THIRTY-FIRST: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty to secure the personal property and the property rights of each citizen equally.

THIRTY-SECOND: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty to refrain from personal involvement in purely private disputes.

THIRTY-THIRD: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty to refrain from assaulting and battering private civilians on behalf of another private citizen.

THIRTY-FOURTH: Defendant, THE CITY OF NEW YORK, POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN had a duty to refrain from using the official authorities to abuse civilians that were not engaged in criminal activity.

THIRTY-FIFTH: As a consequence to the foregoing plaintiff has been caused to sustain diverse economic loss and property damage.

THIRTY-SIXTH: Defendants each individually and collectively failed with respect to each and all of the duties mentioned above.

THIRTY-SEVENTH: As a direct proximate cause of the collective defendants' failures, plaintiff was caused to suffer great harm including, but not limited to

homelessness, lost of property, loss of income, damage to personal relationships, summary eviction, special damages, cost/fees.

THIRTY-EIGHTH: Plaintiff would not have been caused to suffer any of the above mentioned injuries but for collective defendants' breach of duties and failures. Plaintiff's injuries were foreseeable to defendants at all times.

By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

**AS AND FOR A THIRD CAUSE
OF ACTION FOR NEGLIGENCE FAILURE TO TRAIN**

THIRTY-NINTH: This plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as though more fully set forth herein at length.

FORTIETH: That the defendant, THE CITY OF NEW YORK, failed in its duty to teach and control its personnel so as to perform their duties in a non-negligent and non-dangerous manner and with a level of care that a reasonable and prudent police officer should have exercised under the same circumstances.

FORTY-FIRST: That Defendant, POLICE OFFICER ABIOLA ERRICO negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

FORTY-SECOND: That Defendant, POLICE OFFICER MICHEAL LEUN negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

FORTY-THIRD: That the defendant, THE CITY OF NEW YORK, was negligent, reckless and careless in failing to keep and maintain control of its personnel; in failing in its duty to hire, train and control its personnel so as to prevent the contingency which here occurred; in failing in its duty to maintain control over its personnel and the defendant, THE CITY OF NEW YORK and its personnel and supervisors were in other ways negligent, reckless and careless, all to this plaintiff's damage in a sum in excess of the jurisdiction limits of all lower courts of the State of New York.

FORTY-FOURTH: That police officers, including but not limited to POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL LEUN, did cause this plaintiff injury and harm in a gross, wanton and willful manner with malice and intent to cause such harm and knowing that without justification these defendants were intending to injure the plaintiff both mentally and emotionally by engaging in their wrongful acts.

FORTY-FIFTH: By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
VIOLATION OF THE PLAINTIFF'S RIGHTS UNDER
PROVISIONS OF FEDERAL LAW, 42 USC §1983**

FORTY-SIXTH: This plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as though more fully set forth herein at length.

FORTY-SEVENTH: That by reason of the foregoing, the defendants, including but not limited POLICE OFFICER ABIOLA ERRICO and POLICE OFFICER MICHAEL

LEUN, did violate the civil rights of plaintiff, JOSEPHINA RAMIREZ, under color of state law and police authority by subjecting her to a deprivation of her rights, privileges and immunities, all secured by the Federal Constitution, the Constitution of the State of New York and other laws including but not limited to 42 U.S.C. Section 1983.

FORTY-EIGHTH: That defendant POLICE OFFICER ABIOLA ERRICO violated plaintiff's civil rights by using excessive force against her in violation of 42 U.S.C. Section 1983, the U.S. Constitution and the Constitution of the State of New York.

FORTY-NINTH: That defendant POLICE OFFICER MICHAEL LEUN violated plaintiff's civil rights by using excessive force against her in violation of 42 U.S.C. Section 1983, the U.S. Constitution and the Constitution of the State of New York.

FIFTIETH: That heretofore and on the 27th day of May, 2014, the plaintiffs duly served upon, presented and filed with the CITY, a Notice of Claim in writing, setting forth the name of the post office address of said claimant and her attorneys, the nature of the claim, the time, place, where and the manner in which the claim arose, the items of damage and injuries claimed to have been sustained and that thereafter the CITY has refused or neglected up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

FIFTY-FIRST: That a hearing was held pursuant to Section 50(h) of the General Municipal Law on January 8, 2015, and this case has not been settled or adjusted.

FIFTY-SECOND: That this action is being commenced within one year and ninety days after accrual of this cause of action or within the time allowed by law

FIFTY-THIRD: As a result of the aforementioned claims in each cause of action above, this plaintiff was caused to suffer severe and serious personal injury, suffering

injuries to her mind and body, some of which upon information and belief, are believed to be permanent with permanent effects thereof, and further, this plaintiff was caused to be rendered sick, sore, lame and disabled and subject to great physical pain and mental anguish for which this plaintiff was required to seek medical care and attention in an effort to alleviate and/or cure some of the ills, injuries and disabilities suffered; further this plaintiff was prevented from following her usual vocation for a considerable period of time and was further caused to be prevented from enjoying the normal fruits of her activities, both social and economic, all resulting in substantial monetary expense and loss, and upon information and belief, this plaintiff may continue indefinitely into the future to suffer similar losses, expenses and disabilities and the plaintiff thereby demands to be compensated under provisions of law as are more fully set forth in the aforementioned demands in the following damages:

- a. Personal injury;
- b. Punitive damage;
- c. Legal fees, attorneys' fees, expenses and disbursements arising from the foregoing, including violations of federal laws and statutes;
- d. Wrongful detention;
- e. Willful infliction of mental and physical harm;
- f. Assault and battery;
- g. Wrongful eviction; and
- h. For such other and further claims and causes of action more fully set forth/pled herein above.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a sum in excess of the jurisdictional limits of all lower Courts of the State of

New York.

Dated: New York, New York
June 1, 2015

Yours, etc.,

PAZER, EPSTEIN & JAFFE, P.C.
Attorneys for Plaintiffs
20 Vesey Street
New York, New York 10007
(212) 227-1212

VERIFICATION

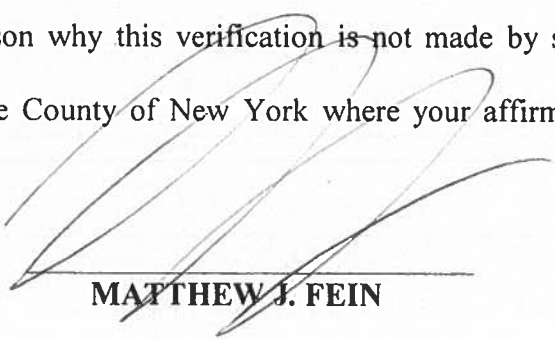
STATE OF NEW YORK)
COUNTY OF NEW YORK) SS:

MATTHEW J. FEIN, under penalty of perjury affirms:

That he is counsel for the plaintiff in the within action; that he has read the foregoing **VERIFIED COMPLAINT**, and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters he believes it to be true.

Your Affirmant further says that the sources of his information and the grounds for his belief are correspondence and conferences had with the plaintiff and in investigations made by your Affirmant and members of his staff.

Your Affirmant further says that the reason why this verification is not made by said plaintiff is because he does not reside within the County of New York where your affirmant maintains his office.


MATTHEW J. FEIN

Affirmed this 19th
day of June, 2015

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

=====

JOSEFINA RAMIREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ABIOLA ERRICO, POLICE OFFICER MICHAEL
LEUN and CESAR BERMEJO,Defendants,
=====

SUMMONS & VERIFIED COMPLAINT

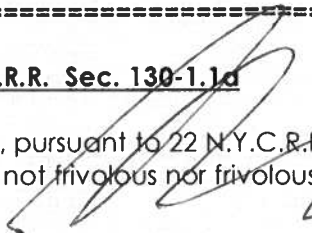
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PAZER, EPSTEIN & JAFFE, P.C.
Attorneys for Plaintiff(s)
20 Vesey Street, Suite 700
New York, NY 10007
(212) 227-1212

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CERTIFICATION PURSUANT TO 22 N.Y.C.R.R. Sec. 130-1.1a

MATTHEW J. FEIN, ESQ., hereby certifies that, pursuant to 22 N.Y.C.R.R. Sec. 130-1.1a, all of the attached documents indicated above are not frivolous nor frivolously presented.

Dated: New York, New York
June 19, 2015
MATTHEW J. FEIN

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PLEASE TAKE NOTICE

- [] Notice of Entry That the within is a true copy of an order entered in the office of the clerk of the within named court on
- [] Notice of Settlement That an Order of which the within is a true copy will be presented for settlement to the Hon. _____, one of the judges of the within named Court on _____ at

Dated: New York, New York
June 19, 2015PAZER, EPSTEIN & JAFFE, P.C.
Attorneys for Plaintiff(s)
20 Vesey Street
New York, NY 10007
(212) 227-1212